

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-037
Amendments to Title 6 of the Chickasaw Nation Code
(Child Support Guidelines)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted child support guidelines, and the Tribal Legislature desires to amend those guidelines.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 6, Chapter 1, Section 6-102.6, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red and deletions are stricken through):

SECTION 6-102.6

CHILD SUPPORT GUIDELINES.

A. Except in those cases where parties represented by counsel have agreed to a different disposition, there shall be a rebuttable presumption in any judicial or administrative proceeding for the award of child support that the amount of the award which would result from the application of the guidelines is the correct amount of child support to be awarded.

B. The Court may deviate from the amount of child support indicated by the child support guidelines if the amount of support so indicated is unjust, inequitable, unreasonable, or inappropriate under the circumstances, or not in the best interests of any child involved. If the Court deviates from the amount of child support indicated by the child support guidelines, the Court shall make specific findings of fact supporting such action.

C. The Court shall not take into account any stepchildren of such parent in making a determination of child support, but in making such determination, the Court may take into account the reasonable support obligations of either parent as to only natural, legal, or legally adopted minor children for whom the parent is actually providing support.

D. For purposes of this section and in determining child support, the noncustodial parent shall be designated the obligor and the custodial parent shall be designated the obligee. The Court may establish a temporary child support obligation against both parents when the minor children are made wards of the Court and/or are placed in foster care or in the home of a guardian or Indian tribe.

E. The child support guidelines are as follows:

1. All child support shall be computed as a percentage of the combined Gross Income of both parents. The Child Support Guideline Schedule provided in this Article B shall be used for such computation. The child support obligations of each parent shall be computed. The obligor's share shall be paid monthly to the obligee and shall be due on a specific date.

2. Definitions:

a. "Gross Income," subject to Paragraph 4 of this Subsection, includes Earned and Passive Income from any source, except as excluded in this Section.

b. "Earned Income" is defined as income received from labor, or the sale of goods or services and includes, but is not limited to, income from:

~~fi.~~ salaries;

ii. wages;

~~iii.~~ tips;

~~iiii.~~iv. commissions;

~~iv.~~v. bonuses; and

~~v.~~vi. severance pay; and

~~vii.~~ military pay including hostile fire and imminent danger pay, combat pay, family separation pay, or hardship duty location pay.

c. "Passive Income" is defined as all other income and includes, but is not limited to, income from:

~~fi.~~ dividends;

ii. pensions;

iii. rent;

iv. interest income;

v. trust income;

vi. support alimony being received from someone other than the other parent in this case;

~~vii~~vii. annuities;

~~viii~~viii. social security benefits;

~~ix~~ix. workers' compensation benefits;

~~x~~x. unemployment insurance benefits;

~~xi~~xi. disability insurance benefits;

~~xii~~xii. gifts;

~~xiii~~xiii. prizes; and

xiv. gambling winnings;

xv. lottery winnings; and

~~xvi~~xvi. royalties.

3. Specifically excluded from Gross Income are:

a. actual child support received for children not before the Court, and

b. adoption assistance subsidy;

~~bc~~c. benefits received from means-tested public assistance programs including, but not limited to:

i. Temporary Assistance for Needy Families (TANF);

ii. Supplemental Security Income (SSI);

iii. Food Stamps; and

iv. General Assistance and State Supplemental Payments for Aged, Blind and the Disabled.

d. the income of the child from any source including, but not limited to, trust income and social security benefits drawn on the disability of the child; and

e. payments received by the parent for the care of foster children.

4. Income and expenses:

a. For income from self-employment, rent, royalties, proprietorship of a business, or joint ownership of a partnership or closely held corporation, "Gross Income" is defined as gross receipts minus ordinary and necessary expenses required for self-employment or business operations.

b. Specifically excluded from ordinary and necessary expenses for purposes of this Paragraph 4 are amounts determined by the Court to be inappropriate for determining Gross Income for purposes of calculating child support.

c. The Court shall carefully review income and expenses from self-employment or operation of a business to determine an appropriate level of Gross Income available to the parent to satisfy a child support obligation.

d. The Court shall deduct from self-employment Gross Income an amount equal to the employer contribution for F.I.C.A. tax which an employer would withhold from an employee's earnings on an equivalent Gross Income amount. A determination of business income for tax purposes shall not control for purposes of determining a child support obligation. **Amounts allowed by the Internal Revenue Service for accelerated depreciation or investment tax credits shall not be considered reasonable expenses.**

e. Expense reimbursements or in-kind payments received by a parent in the course of employment, self-employment, or operation of a business shall be counted as income if they are significant and reduce personal living expenses. Such payments may include but are not limited to **per diem or other allowance**, a company car, free housing, or reimbursed meals.

i. **Basic Allowance for Housing, Basic Allowance for Subsistence, and Variable Housing Allowances for service members are considered income for the purposes of determining child support.**

ii. **Employee benefits that are typically added to the salary, wage, or other compensation that a parent may receive as a standard added benefit, such as employer contributions to portions of health insurance premiums or employer contributions to a retirement or pension plan are not considered income for the purposes of determining child support.**

f. **Social Security Title II benefits received by a child shall be included as income to the parent on whose account the benefit is drawn and shall be applied against the child support obligation ordered to be paid by that parent. If the benefit of the child is drawn because of the disability of the child, the**

benefit shall not be added to the income of either parent and shall not be deducted from the obligation of either parent.

i. If the child support award due after calculating the child support guidelines is greater than the social security benefit received on behalf of the obligor, the obligor shall be required to pay the amount exceeding the social security benefit as part of the child support award in the case.

ii. If the child support award due after calculating the child support guidelines is less than or equal to the social security benefit received on behalf of the obligor, the obligor shall not be required to pay any additional child support. Any social security benefits which are greater than the support ordered by the court shall be retained by the custodial parent for the benefit of the child and shall not be used as a reason for decreasing the child support order or reducing arrearage.

iii. The child support computation form shall include a notation regarding the use of social security benefits received on behalf of a parent as an offset.

iv. Calculation of child support when social security benefits are at issue shall be effective no earlier than the date on which the motion to modify was filed.

v. The court may determine if, under the circumstances of the case, it appropriate to credit social security benefits paid to the custodial parent prior to a modification of child support against the past-due child support obligation of the noncustodial parent. However, any credit granted shall be limited to the time period during which social security benefits were paid or the time period covered by a lump sum for past social security benefits.

vi. The noncustodial parent shall not receive credit for any social security benefits paid directly to the child.

g. Veterans disability compensation benefits received by a child on behalf of a parent shall be treated in the same manner as Social Security Title II benefits.

5. Obligation of parents:

a. For purposes of computing Gross Income of the parents, the Court shall include for each parent, whichever is most equitable, either:

fi. all earned and passive monthly income;

ii. all ~~current~~ Passive Income, and Earned Income, equivalent to a forty (40) hour work week plus such overtime and supplemental income as the Court deems equitable ~~appropriate~~;

iii. the average of the gross monthly income for the time actually employed during the previous three (3) years ~~year~~; or

iv. ~~the minimum wage paid for a forty (40) hour work week~~ the gross monthly income imputes as set forth below.

b. If equitable or if evidence of current or average income of a parent is not available or not the most equitable, the Court may instead impute as gross monthly income for either parent the amount a person with comparable education, training and experience could reasonably expect to earn. ~~consider the following factors to impute the parent's monthly gross income:~~

i. ~~the average wages and hours worked in the parent's particular industry and geographic area and the parent's education, training, work experience and ability to work;~~

ii. ~~wages the parent could earn consistent with the minimum wage rate of not less than twenty-five (25) hours per week;~~

iii. ~~whether a parent has been determined the court to be willfully or voluntarily underemployed or unemployed including whether unemployment or underemployment for the purposes of pursuing additional training or education is reasonable in the light of the obligation of the parent to support his or her children or other voluntary action to reduce a parent's income;~~

iv. ~~the lifestyle of the parent including ownership of valuable assets and resources, whether in the name of the parent or the current spouse of the parent, that appears inappropriate or unreasonable for the income claimed by the parents;~~

v. ~~the role of the parent as caretaker of a handicapped or seriously ill child of that parent, or any other handicapped or seriously ill relative for whom that parent has assumed the role of caretaker which eliminates or substantially reduces the ability of the parent to work outside the home, and the need of that parent to continue in that role in the future;~~
or

vi. ~~any additional factors deemed relevant to the particular circumstances of the case.~~

c. If a parent is permanently physically or mentally incapacitated **or incarcerated for more than one hundred eighty (180) consecutive days**, the child support obligation shall be computed on the basis of ~~actual~~ **current** monthly Gross Income. **For purposes of computing gross income of the parents in such circumstances, gross income shall not be imputed as set forth in herein unless the obligor's incarceration is a result of indirect contempt of court for failure to pay child support, the crime of omission to provide child support or for any offense for which the obligee's dependent child or the obligee was the victim.**

6. The amount calculated under section 6-102.6(C), and the amount of any preexisting court order for current child support for children not before the Court or for support alimony arising in a prior case shall be deducted from Gross Income to the extent payment is actually made under the order. (PR33-006, 9/16/16)

7. The amount of reasonable expenses of the parties attributable to debt service for preexisting, jointly acquired debt of the parents may be deducted from Gross Income to the extent payment of the debt is actually made. In any case where deduction for debt service is made, the Court may provide for prospective upward adjustments of support made possible by the reasonably anticipated reduction or elimination of any debt service.

8. The results of Paragraphs 2, 3, 4, 5, 6 and 7 of this Subsection shall be denominated "Adjusted Gross Income."

9. In cases in which one parent has sole custody, the Adjusted monthly Gross Income of both parents shall be added together and the Child Support Guideline Schedule consulted for the total combined base monthly obligation for child support.

10. After the total combined child support is determined, the percentage share of each parent shall be allocated by computing the percentage contribution of each parent to the combined Adjusted Gross Income and allocating that same percentage to the child support obligation to determine the base child support obligation of each parent.

11. Obligation of parents adjusted:

a. In cases where Shared Parenting Time has been ordered by the Court or agreed to by the parents, the base monthly obligation shall be adjusted. "Shared Parenting Time" means that each parent has physical custody of the child or children overnight for more than one hundred twenty (120) nights each year.

b. An adjustment for Shared Parenting Time shall be made to the base monthly child support obligation by the following formula: The total combined base monthly child support obligation shall be multiplied by one and one-half (1/2). The result shall be designated the "Adjusted Combined Child Support Obligation."

c. To determine each parent's adjusted child support obligation, the Adjusted Combined Child Support Obligation shall be divided between the parents in proportion to their respective Adjusted Gross Incomes.

ii. The percentage of time a child spends with each parent shall be calculated by determining the number of nights the child is in the physical custody of each parent and dividing that number by three hundred and sixty-five (365).

ii. Each parent's share of the Adjusted Combined Child Support obligation shall then be multiplied by the percentage of time the child spends with the other parent to determine the base child support obligation owed to the other parent. For each parent, this amount is then subtracted from the respective share of the Adjusted Combined Child Support Obligation.

iii. The respective adjusted base child support obligations for each parent are then offset, with the parent owing more base child support paying the difference between the two amounts to the other parent. The base child support obligation of the parent owing the lesser amount is then set at zero dollars (\$0).

d. The parent owing the greater amount of base child support shall pay the difference between the two amounts as a child support order. In no case, shall the amount of child support ordered to be paid exceed the amount of child support which would otherwise be ordered to be paid if the parents did not participate in Shared Parenting Time.

e. In no event shall the provisions of this Paragraph 11 be construed to authorize or allow the payment of child support by the custodial parent to the noncustodial parent.

12. Insurance premiums:

a. The actual medical and dental insurance premium for the child shall be allocated between the parents in the same proportion as their Adjusted Gross Income and shall be added to the base child support obligation. If the insurance policy covers a person other than the child before the Court, only that portion of the premium attributed to the child before the Court shall be allocated and added to the base child support obligation.

b. If the obligor pays the medical insurance premium, the obligor shall receive credit against the base child support obligation for the obligee's allocated share of the medical insurance premium.

c. If the obligee pays the medical insurance premium, the obligor shall pay the obligor's allocated share of the medical insurance premium to the obligee as part of the base child support obligation;

13. In cases of split custody, where each parent is awarded custody of at least one (1) of their natural or legally adopted children, the child support obligation for each parent shall be calculated by application of the child support guidelines for each custodial arrangement. The parent with the larger child support obligation shall pay the difference between the two (2) amounts to the parent with the smaller child support obligation.

14. Child care expenses:

a. The Court shall determine the "Actual" child care expenses reasonably necessary to enable either or both parents to:

- (1) be employed;
- (2) seek employment; or
- (3) attend school or training to enhance employment income.

b. The Actual child care costs incurred for the purposes authorized by this Paragraph 14 shall be allocated and paid monthly in the same proportion as base child support.

c. The Court shall require the obligee to provide the obligor with timely documentation of any change in the amount of the child care costs. Upon request by the obligor, whose requests shall not exceed one each month, or upon order of the Court, the obligee shall provide the documentation of the amount of incurred child care costs which are related to employment, employment search or education or training as authorized by this Paragraph 14.

d. If the Court determines that it will not cause detriment to the child or will not cause undue hardship to either parent, in lieu of payment of child care expenses incurred during employment, employment search, or while the obligee is attending school or training, the obligor may provide care for the child during that time.

15. Reasonable and necessary medical, dental, orthodontic, optometric, psychological, or any other physical or mental health expenses of the child incurred by either parent and not reimbursed by insurance may be allocated in the same proportion as the parents' Adjusted Gross Income as separate items that are not added to the base child support obligation. If reimbursement is required, the parent who incurs the expense shall be reimbursed by the other parent within thirty (30) days of receipt of documentation of the expense.

16. Transportation expenses of a child between the homes of the parents may be divided between the parents in proportion to their Adjusted Gross Income.

17. Material change in circumstances:

a. Child support orders may be modified upon a material change in circumstances **which includes, but it is not limited to, an increase or decrease in the needs of the child, an increase or decrease in the income of the parents, incarceration of a parent for a time period of more than one hundred eighty (180) consecutive days, or when one of the children in the child support order reaches the age of majority or otherwise ceases to be entitled to support. The court shall apply the principles of equity in modifying any child support order due to changes in the circumstances of either party as it relates to the best interest of the children.**

b. Three (3) years after the issuance of any child support order the Chickasaw Nation Child Support Enforcement Department of Youth and Family Services ("CSE") may file an action for modification of child support based upon application of either party. Either party may file an action for modification of child support at any time after entry of decree upon showing a material change of circumstances.

c. Providing support for children born to or adopted by either parent after the entry of a child support order shall not alone be considered a material change in circumstances.

d. An order of modification shall be effective ~~upon~~ **on the first day of the month following** the date the motion to modify was filed, unless the parties agree to the ~~contrary~~ **another date** or the Court makes a specific finding of fact that the material change of circumstance did not occur until a later date.

e. A child support order shall not be modified retroactively regardless of whether support was ordered in a temporary order, a decree of divorce, an order establishing paternity, modification of an order of support, or other action to establish or to enforce support.

f. All final orders shall state whether past due support and interest has accrued pursuant to any temporary order and the amount due, if any; however, failure to state a past due amount shall not bar collection of that amount after entry of the final support order.

g. The amount of a child support order shall not be construed to be an amount per child unless specified by the Court in the order. A child reaching the age of majority or otherwise ceasing to be entitled to support pursuant to the support order shall constitute a material change in circumstances, but shall not automatically serve to modify the order.

18. Exchange of parental information:

a. At any time after the issuance of child support order, either parent may request the other parent to provide the information necessary for an informal review and adjustment process. Information shall be provided to the requesting parent within forty-five (45) days of the request.

b. Requested information may include verification of income, proof and cost of children's medical insurance, and current and projected child care costs. If Shared Parenting Time has been awarded by the Court, documentation of past and prospective overnight visits shall be exchanged.

c. Exchange of requested information may occur once a year or less often, by regular mail.

19. The social security numbers of both parents and the children who are the subject of the order shall be furnished by the parties to CSE. (PR19-019, 6/27/02; PR19-023, 7/19/02)

20. After November 1, 2021, there shall be a rebuttable presumption that an obligor who is incarcerated for a period of one hundred eighty (180) or more consecutive days is unable to pay child support.

a. The obligor's child support obligation shall be abated without court action effective the first day of the month following the date of entry into the correction facility of jail and shall not accrue for the duration of the incarceration unless the presumption is rebutted by a showing of means to pay.

b. Upon release from incarceration, the monthly child support obligation shall revert to the pre-incarceration order amount beginning the first day of the month following a lapse of ninety (90) calendar days after release from incarceration.

c. The abatement of monthly support obligation under this section shall not affect any past-due support that has accrued prior to the abatement of the obligation.

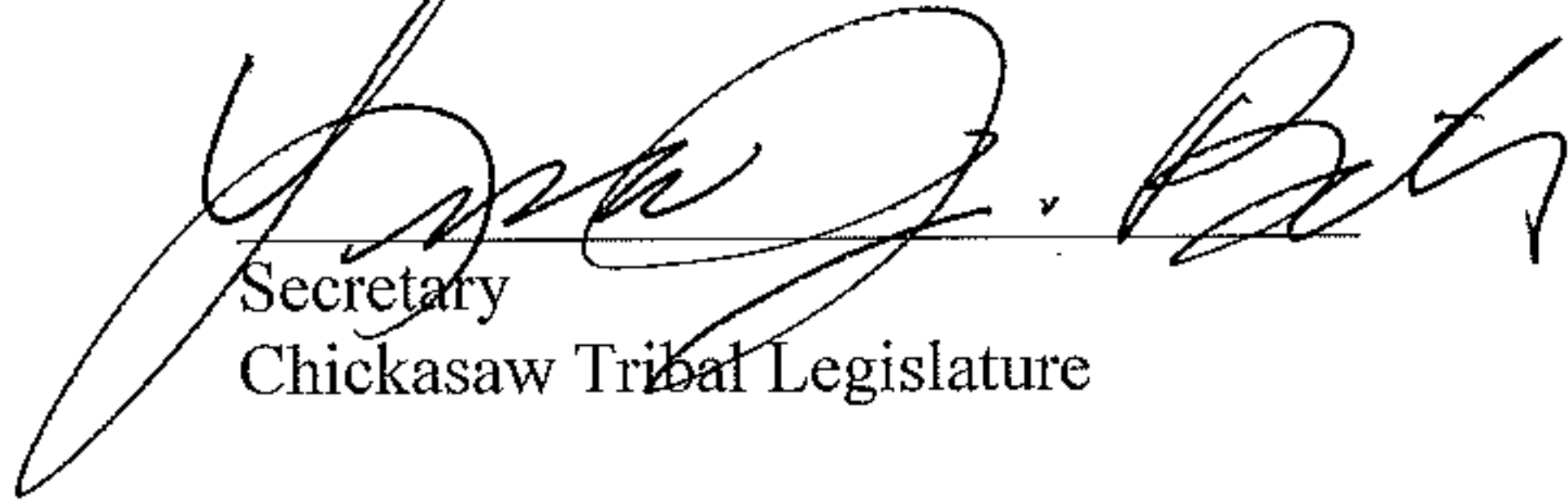
d. If any of the crimes for which the obligor is incarcerated are a result of the indirect contempt of court for failure to pay child support, the crime of omission to provide child support, or for any offense for which the obligee's dependent child or the obligee was a victim, the abatement shall not be presumed and the child support obligation shall continue to accrue.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that these additions to the Chickasaw Nation Code shall be effective as of November 1, 2021.

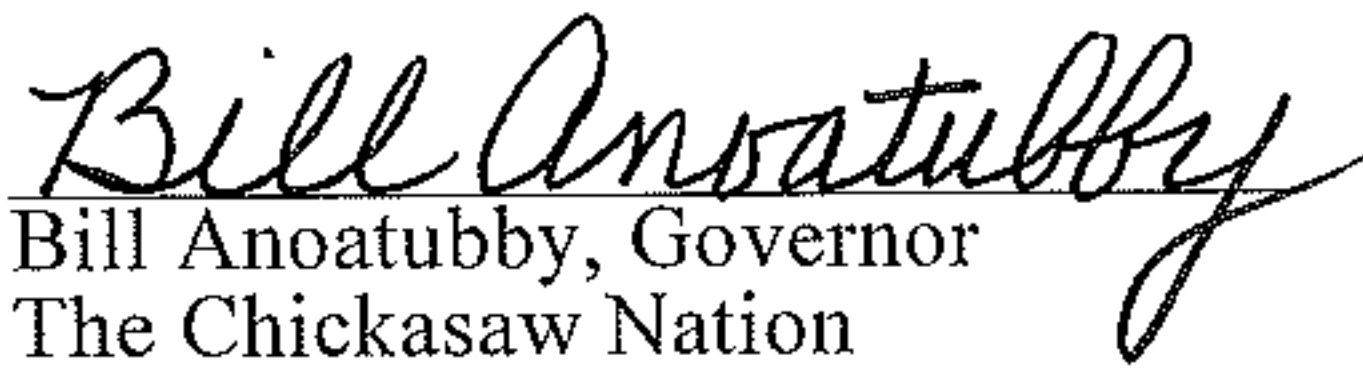
Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on September 17, 2021, by a vote of 11 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 17 2021

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-037
Amendments to Title 6 of the Chickasaw Nation Code
(Child Support Guidelines)

Explanation:

This resolution modifies one section in Title 6 to be consistent with the State of Oklahoma's child support guidelines.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature